
Appeal Decision

Site visit made on 9 July 2026

by R Standfield BSc (Hons) MA MRTPI

an Inspector appointed by the Secretary of State

Decision date: 4 September 2026

Appeal Ref: 6008669

Crown House, 1 Stafford Place, Weston-super-Mare, North Somerset BS23 2QZ

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr Summers of Trust Inheritance Ltd against the decision of North Somerset Council.
 - The application Ref is 26/P/0327/FUL.
 - The development proposed is replacement of 24 no. windows.
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Decision

1. The appeal is dismissed.

Preliminary Matter

2. The National Planning Policy Framework (the NPPF) was updated 17 August 2026. Insofar as the contents are relevant to this appeal, the NPPF remains broadly consistent, therefore, I am satisfied no party would be disadvantaged by not having the opportunity to comment on the revised NPPF.

Main Issue

3. The main issue is the effect of the proposed development upon the character and appearance of the area, having particular regard to whether the development would preserve or enhance the character or appearance of the Great Weston Conservation Area (GWCA), and whether it would preserve the setting of the Grade II listed former Weston-super-Mare Library.

Reasons

4. The appeal site is located within the GWCA whereby Section 72 (1) of the Planning (Listed Buildings and Conservation Areas) Act 1990 requires special attention to be paid to preserving or enhancing the character or appearance of conservation areas. It is also within proximity of the Grade II listed former Weston-super-Mare Library where Section 66 (1) of the same Act requires special regard to the desirability of preserving a listed building or its setting.
5. Submitted documentation relating to the GWCA places the appeal site within Town Centre Character Area 7 – The Boulevard. The significance of this part of the GWCA is derived from the so named wide, tree lined Victorian avenue displaying strong rhythms of gables and bay windows, alongside the use of red brick with supplementary Bath or Weston stone. The former Weston-super-Mare Library, by local architect Hans Price, is positioned at a focal point, displaying the

- free Renaissance style of architecture and building design in a detailed and complete front elevation.
6. Policy CS5 of the North Somerset Core Strategy (2017) (the Core Strategy) sets out that the Victorian townscape is a distinctive component of the historic environment that should be subject to particular attention. In addition, development within the town centre is expected to demonstrate exemplar standards as set out in the explanatory text to Core Strategy Policy CS12 (Design Quality).
 7. The GWCA Appraisal and Management Plan (AMP) identifies the particularly negative impact arising from loss of traditional historic features in the Boulevard area, with replacement uPVC windows and doors being specifically noted. The overall condition of the street in terms of retaining historic features is stated as being low, with significant attention required. The AMP states that where original painted softwood sash windows survive, they offer important historical evidence of the original appearance. As such, the retention or reinstatement of such details is encouraged, with high expectations for proposed development to comply with the AMP's approach, reinforced by Policy DM3 of the Development Management Policies, Sites and Policies Plan Part 1 (2016) (the Sites and Policies Plan).
 8. The appeal site, Crown House, comprises a detached two storey Victorian building positioned at a prominent corner opposite the listed former library and is highly visible within the public realm of Boulevard and also the adjacent Stafford Place. It features double bay windows fronting Boulevard and vernacular carved gables to the roofscape. It contributes positively to both the GWCA and the setting of the listed building, with traditional timber sliding sash windows displaying original proportions and details, including the integral horn to the upper sash frame that demonstrates the quality of Victorian fenestration.
 9. Whilst the submitted brochure illustrates the proposed replacement windows to be sliding sash and the appellant suggests that these will replace the existing windows like for like, there are inevitable differences in the use of uPVC over timber. These differences arise from the construction, finish, and wear over time, effecting the proportions and overall appearance of the window, which are already altered by the introduction of the gap with silver spacer strip and the double-glazing panes. The uniform finish of uPVC manufactured with a 'woodgrain effect' lacks the authenticity of a timber window that ages over time.
 10. Notwithstanding that the individual differences are unlikely to be visible in detail from the street, the overall appearance would be of modern uPVC double glazing. Further, the loss of authentic building materials would undermine the heritage value of this visually prominent building and the wider GWCA, exacerbating the local decline in original details noted by the AMP.
 11. Examples of similar window replacements have been presented by the appellant at 39 Boulevard (adjacent to the appeal site), 8 Albert Quadrant (to the rear of the appeal site), and no's 3 and 5 Stafford Place (also adjacent to the appeal site). I have not been provided with the details of these projects or the circumstances for the consideration of each scheme and as such, I afford these examples limited weight. Having observed each of these addresses during my site visit, I am not persuaded that the cumulative impact within the immediate locality of the appeal site wouldn't further erode the quality of the street scene and undermine the

ambitions of the Council to retain and reinstate the quality of the Victorian buildings.

12. My attention has also been drawn to an allowed appeal for replacement windows at 24 Clarence Road South (APP/D0121/W/23/3319856), which the appellant contends provides a precedent for this current decision. Notwithstanding that each appeal must be considered on its own merits, 24 Clarence Road South is within a different part of the GWCA and sits at the corner of residential streets overlooking a park. As such, its visual prominence and context is very different to that of the current appeal site. Further to this, the Inspector in that case, concludes that other retained elements of the building would preserve the aspects that contribute most to the significance of the GWCA in that location. In the case of the current appeal, the AMP priority of retaining details, specifically including timber framed windows and doors within the Boulevard area, sets a differing context and as above therefore, the referenced appeal contributes limited weight in favour of this case.
13. Annex B of the NPPF confirms that the setting of a heritage asset comprises the surroundings in which the asset is experienced. Its extent is not fixed and may change as the asset and its surroundings evolve. Elements of a setting may make a positive or negative contribution to the significance of an asset, may affect the ability to appreciate that significance or may be neutral. The appeal site forms part of the setting of the Grade II listed former library. The significance of the library lies in its architectural detail and historic context as a public building / library. The spacing of the Boulevard at this point allows a generous setting of Victorian buildings, including the appeal site, which reflect to various degrees the detailing and materials of the listed building.
14. The ability to experience the significance of the former Weston-super-Mare Library would suffer an erosion of its physical setting, albeit to a limited degree. Therefore, harm would be caused to the significance of both the GWCA and the setting of the listed building.
15. Policy H6 1 of the NPPF states that substantial weight should be given to the conservation of a designated heritage asset and in H6 4, any harm to, or loss of, the significance of such an asset requires clear and convincing justification along with an assessment of the harm weighed against any public benefits resulting from the proposal.
16. In this instance, there would be some temporary economic benefits associated with fabrication and installation of the new windows and an overall contribution to sustainability by way of improved thermal efficiency which Policy H6 4 identifies as an important public benefit. However, I am not persuaded that the public benefits would be of sufficient magnitude to outweigh the harm to the significance of the heritage assets, and the considerable importance this carries.
17. Recognising that the current single glazing panes are resulting in significant energy use, cost and discomfort for the occupants, there would be a valuable improvement in the thermal efficiency of the building with double glazed panes which would contribute towards the improved well-being of the occupants and energy performance benefits in support of environmental sustainability. An interested party notes that such improvement could also enable businesses to stay in the locality. However, I have not been presented with substantive evidence to suggest that the proposed uPVC windows would significantly outperform well

installed and maintained double glazed timber windows which could meet energy efficiency and comfort requirements whilst also maintaining the authenticity of the building and preserving the contribution that the building makes to the GWCA.

18. Therefore, the harms that would be caused to the significance of the GWCA and the setting of the former Weston-super-Mare Library lack clear and convincing justification. The public benefits, taken as a whole, would not outweigh the substantial weight that the conservation of designated heritage assets carries. The proposal would therefore fail to accord with the historic environment policies in Chapter 20 of the NPPF.
19. For these reasons the proposal would neither preserve or enhance the character or appearance of the existing building and would undermine the positive contribution that it makes to the character and appearance of the GWCA. It would also fail to preserve the quality of the setting of the Listed Building.
20. It would thus fail to meet the requirements of part II sections 66 (1) and 72 (1) of the Act and Chapter 20 of the NPPF, which states that substantial weight should be given to the conservation of heritage assets. It would be contrary to Policies CS5 and CS12 of the Core Strategy and Policies DM3, DM4 and DM32 of the Sites and Policies Plan, collectively the development plan. Taken together, these policies require that new development protects, and where possible enhances, the historic environment, with reference to settings, design quality and distinctiveness.

Conclusion

21. The proposal conflicts with the development plan and the material considerations do not indicate that the appeal should be decided other than in accordance with it. Therefore, the appeal is dismissed.

R Standfield

INSPECTOR